

#	Case Name	Tentative Ruling
101	Beasley vs. Soheil, 2024-01411587	Motion for Summary Judgment/Adjudication – GRANTED Defendant Southern California Specialty Care, LLC dba Kindred Hospital – La Mirada (“Kindred”) moves for summary judgment against the causes of action asserted by plaintiffs Yoshira Beasley as an individual and as representative of the Estate of Mable Donice Williams, Darlen Nelson, Rodney Nelson, and Pamela Freeman. Plaintiffs are the surviving children and heirs of Mable Donice Williams (“Decedent”) and assert causes of action for wrongful death resulting from medical malpractice, elder abuse, and wrongful death based on elder abuse arising out of Decedent’s death during her stay at Kindred’s facilities. In a medical malpractice action, when a defendant moves for summary judgment and supports their motion with expert declarations that their conduct fell within the community standard of care, they are entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence. (Munro v. Regents of the University of Calif. (1989) 215 Cal.App.3d 977, 985.) Here, Kindred’s motion is supported by the Declaration of William Klein, M.D., a licensed physician, a Diplomate of the American Board of Internal Medicine, and a Diplomate in the American Board of Internal Medicine – Pulmonary Diseases. Dr. Klein reviewed the relevant medical records and the allegations in this action. His opinion is that, to a reasonable degree of medical probability, Kindred did not fall below the standard of care in providing treatment and care to Decedent during her stay. He states that Decedent received 24/7 care from sufficiently competent, capable, and watchful staff and her death occurred naturally, as predicted by the consistent and repeatedly poor prognoses of her treating physicians. He found no evidence to support the claims that Kindred failed to monitor, respond to, or report Decedent’s changes in condition or provide adequate wound care. He found no evidence to support the claims that Kindred failed to

provide nutrition and hydration as ordered or required for Decedent's wellbeing or that Kindred caused Decedent's death. Further, as a mandated reporter, he is trained to recognize signs or symptoms of elder abuse and found no evidence of abuse in his review of the medical records. He concluded that, to a degree of medical probability, Kindred did not cause Decedent's death.

The motion is unopposed. Dr. Klein's declaration establishes that Kindred's care and treatment of Decedent fell within the applicable standard of care. As plaintiffs have failed to rebut that evidence, Kindred is entitled to judgment as a matter of law on the first cause of action for wrongful death/medical malpractice.

As to the remaining two causes of action based on elder abuse, plaintiffs allege that Kindred failed to provide health care, 24-hour supervision, room and board, and personal care and assistance to Decedent, resulting in a stage 4 decubitus ulcer. They allege that Kindred's failure to provide daily care, such as turning, moving, or treating Decedent for any infections, was neglectful, malicious, and reckless. They further allege that the denial of proper medical treatment exposed Decedent to the development and aggravation of multiple infections, which substantially contributed to her death.

The Elder Abuse Act holds a defendant liable for neglect under section 15610.57 committed with "recklessness, oppression, fraud, or malice." (Welf. & Inst. Code, § 15657.) Section 15610.57 states that "neglect" includes, but is not limited to the following:

Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.

Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.

Failure to protect from health and safety hazards.

Failure to prevent malnutrition or dehydration.

Substantial inability or failure of an elder or dependent adult to manage their own finances.

Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

As discussed above, Dr. Klein declares that the care and treatment of Decedent fell within the applicable standard of care. Dr. Klein declares that Kindred provided regular care by multiple physicians and staff and even after providing significant breathing support, numerous medications, infection control measures, wound care, hydration/nutrition, and other matters of hygienic and medical care and treatment as ordered by Decedent's physicians, her death occurred as a natural result of her condition. This evidence negates plaintiffs' allegations that Decedent was denied proper medical treatment or daily care. Plaintiffs have not rebutted this evidence to raise any triable issue of fact as to whether Kindred failed to assist in Decedent's personal hygiene, provide medical care for her physical or mental health, protect from health and safety hazards, or prevent malnutrition or dehydration.

Further, Kindred points to the fact that plaintiffs have not produced any evidence through the course of discovery to demonstrate that Kindred neglected Decedent or caused her any injury. Kindred is entitled to rely on factually devoid discovery responses to shift the burden of proof to plaintiffs. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590.) "Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact." (Ibid.) Plaintiffs have failed to do so here. Therefore, Kindred is also entitled to judgment as a matter of law on the elder abuse causes of action.

In light of the above, the Motion for Summary Judgment is GRANTED.

Kindred to prepare a proposed order and a proposed judgment.

		Moving party to give notice.
102	Chao v. Air Combat USA, 2022-01258475	Motion to be Relieved as Counsel – MOOT
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104	Doe vs. Goodwill of Orange County, 2023-01341615	Motion for Determination of Good Faith Settlement – DENIED WITHOUT PREJUDICE Defendant Sodexo Management, Inc. moves for an order determining that the settlement between Sodexo and Plaintiff Jane Doe was made in good faith pursuant to Code of Civil Procedure section 877.6. Defendant Goodwill of Orange County opposes the motion. The Motion for Determination of Good Faith Settlement is DENIED, without prejudice. Sodexo was named as DOE 41. (ROA 61.) Plaintiff asserts eight (8) causes of action against defendants in her Complaint. Only the eighth cause of action for general negligence is asserted against DOES 41-60. The evidence provides that Plaintiff and Sodexo reached a settlement in the amount of \$1,900,000. (Decl. of Barry Rodolff, ¶¶ 3-4; Ex. A to Reply Declaration of Barry L. Rodolff, Settlement Agreement.) The moving papers for a determination of good faith settlement must establish “a prima facie showing of a good faith settlement.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262 .) The most important factor is the settling party’s proportionate liability. (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal.App.4th 1337, 1350.) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor’s liability to be. (Grand Terrace,